TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

July 20, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and

- For additional information, please see the court's website at Court Reporter Interpreter Services for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at **https://www.occourts.org/media-relations/civil.html** before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at **https://www.occourts.org/media-relations/aci.html**. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at **https://www.occourts.org/media-relations/aci.html**. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50.	Sunwest Bank v. Encino Towers, LLC 2023-01329501	Anthony O. Egbase, Esq. and A.O.E. Law & Associates, Inc.'s motion to be relieved as counsel of record is GRANTED in part and CONTINUED in part as follows. The motion is GRANTED as to the following clients only, effective upon the filing of the proof of service of the signed order upon the clients: (1) Millennium Hospice Care, Inc.; (2) Blue Haven Hospice & Palliative Care, Inc.; (3) Hollywood Health Services, Inc.; (4) Med Plus Hospice Care, Inc.; (5) Relyable Hospice Care, Inc.; (6) Toluca Hospice Care, Inc.; (7) VIP Hospice Care; (8) Especial Care Hospice, Inc.; (9) Golden Hills Healthcare Services, Inc.; and (10) AIM Hospice Care, Inc. An order to show cause is set for August 28, 2026 at 9:00 a.m. in Department C28. At the hearing, the Court will strike the answer and enter default for defendants: (1) Millennium Hospice Care, Inc.; (2) Blue Haven Hospice & Palliative Care, Inc.; (3) Hollywood Health Services, Inc.; (4) Med Plus Hospice Care, Inc.; (5) Relyable Hospice Care, Inc.; (6) Toluca Hospice Care, Inc.; (7) VIP Hospice Care; (8) Especial Care Hospice, Inc.; (9) Golden Hills Healthcare Services, Inc.; and (10) AIM Hospice Care, Inc. for their failure to appear through counsel unless they (a) substitute in new counsel before the hearing or (b) appear at the hearing and show good cause otherwise. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal. App. 4th 1141, 1146 [holding that a corporation must appear through counsel]; *Van Gundy v. Camelot Resorts, Inc.* (1983) 152 Cal. App. 3d Supp. 29, 31-32 [court should enter default for corporation that fails to appear through counsel].) To the extent the motion seeks an order relieving Anthony O. Egbase, Esq. and the law firm of A.O.E. Law & Associates, Inc. as counsel for client Grove Hospice Care, Inc., the motion is CONTINUED to August 24, 2026 at 2:00 p.m. in this department. There is no proof of service of the moving papers on Grove Hospice Care, Inc. Although counsel's declaration states that service was made on the client via mail (see ROA No. 702), this attestation alone is not sufficient to satisfy the service by mail requirements of Code of Civil Procedure section 1013,

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		subdivision (a), or the proof of service by mail requirements of Code of Civil Procedure section 1013a. Moving counsel is **ORDERED** to (1) properly serve all moving papers, including notice of the continued hearing date above, on Grove Hospice Care, Inc. and all other parties who have appeared in the case, and (2) file proof of service of the same, **by no later than Monday 7/27/26**. Moving counsel shall give notice of this ruling.
51.		
52.	Maranwe v. Saunders & Associates, APC 2025-01499956	Plaintiff Daniel Maranwe's motion for sanctions against defendants Saunders & Associates, APC, Gary Saunders, Vasili Papas, and Morena Elias, is GRANTED in part and DENIED in part. (Code Civ. Proc., §§ 128.5, 128.7.) The motion is GRANTED as to the request to strike the demurrer filed by defendant Saunders & Associates, APC (ROA 25, 35), and the motion to strike filed by defendants Gary Saunders, Vasili Papas, and Morena Elias (ROA 26, 33). Both the demurrer and motion to strike were filed under the name of attorney Wayne J. Quint III, and bear his purported signature. Plaintiff's evidence shows that attorney Quint denies signing or authoring defendants' demurrer or motion to strike, and denies authorizing defendants to file pleadings under his name, effectively rendering the demurrer and motion to strike as unsigned. (Maranwe Decl. in support of motion [ROA 46], ¶ 3, Ex. A [email from attorney Quint stating "I never EVER wrote this AI slop ... Gary [V]asili and [M]orena thought it would be acceptable to send this with my name on it ... I will be reporting them to the State Bar"]; see also *id*. at ¶ 8, Ex. G [texts by attorney Quint denying authorizing defendants to file motions under his name without his consent]; Code Civ. Proc., § 128.7, subd. (a) ["An unsigned paper <u>shall</u> be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party;" emphasis added.) Moving plaintiff has further complied with the "safe harbor" provision of both statutes, by serving the motion to defense counsel by e-service on 2-2-26, which is more than 21 days before the motion was filed on 2-26-26. (Code Civ. Proc., §§ 128.5, subd. (f)(1)(B), 128.7, subd. (c)(1); Maranwe Decl. in support of motion, ¶ 9, Ex. I.) Accordingly, the court orders that the demurrer filed by defendant Saunders & Associates, APC (ROA 25, 35), and the motion to strike filed by defendants Gary Saunders, Vasili

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		Papas, and Morena Elias (ROA 26, 33), are STRICKEN, and the hearing on said motions is vacated. Defendant Saunders & Associates, APC shall pay monetary sanctions to plaintiff Daniel Maranwe in the amount of $76.93 within 30 days. (Maranwe Decl., ¶ 10; Code Civ. Proc., § 128.5, subds. (a) [sanctions may include "reasonable expenses ... incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous"], (f)(1)(C) ["Absent exceptional circumstances, a law firm shall be held jointly responsible for violations committed by its partners, associates, and employees"], Code Civ. Proc., § 128.7, subd. (d) [sanctions may include "some or all of the reasonable ... expenses incurred as a direct result of the violation"], subd. (c)(1) ["Absent exceptional circumstances, a law firm shall be held jointly responsible for violations committed by its partners, associates, and employees"].) Defendants are cautioned not to file pleadings in the future under the name of an attorney who has not consented to or authorized same. (*Levine v. Berschneider* (2020) 56 Cal.App.5th 916, 921 [duty of candor to the court].) Given that the pending demurrer and motion to strike are stricken, defendants Saunders & Associates, APC, Gary Saunders, Vasili Papas, and Morena Elias, are granted until July 31, 2026 to file appropriate responsive pleadings to plaintiff's Complaint. The remainder of the motion is DENIED. The case management conference is continued to November 30, 2026 at 9:00 a.m. in Department C28. Maranwe shall give notice within 2 days, and file a proof of service within 5 days.
53.	Olen Commercial Realty Corp. v. Tush Law, LTD 2023-01354690	The Court has reviewed the Parties' respective responses to the Order to Show Cause re: Consolidation and finds good cause to consolidate the matter of Olen Commercial Realty Corp. v. Tush Law, LTD (OCSC Case No. 2023-01354690) and Tush Law, LTD v. Olen Commercial Realty Corp. (OCSC Case No. 2023-01360457) for all purposes. (Code Civ. Proc. §1048, subd. (a).) The Court finds that both actions involve claims arising out of the same transaction among the parties. The Court finds that consolidation of these matters will not increase the complexity of issues so as to cause a risk of confusing the jury. The Court finds that consolidation of these matters is necessary to avoid

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		duplicative proceedings and the potential of inconsistent verdicts. Defendants Tush Law, LTD and Alan Turlington argue that prejudice would result from consolidation because Olen's claims in this matter would no longer be subject to jurisdictional limits applicable to a limited civil case. The Court finds that the prejudice, if any, that could result from Olen's action becoming reclassified as unlimited jurisdiction is far outweighed by the gross inefficiency involved in treating these matters as separate for pre-trial purposes. Permitting these actions to proceed separately for pre-trial purposes will lead to unnecessary duplication of efforts in conducting (and resolving disputes in) discovery and otherwise bringing these closely related matters to trial. Furthermore, Defendants have not shown the type of prejudice that would justify leaving these matters as separate proceedings. (See, e.g. *State Farm Mutual Auto Ins. Co. v. Superior Court* (1956) 47 Cal.2d 428, 430-432 [prejudice from consolidation that would result in a party having to take inconsistent positions at trial].) This case (Olen Commercial Realty Corp. v. Tush Law, LTD (2023-01354690) shall be considered the lead case. All documents and other papers need only be filed in this case. The caption for all subsequent filings shall include the caption and case number for this case, followed by the case number of the other consolidated matter. The stay of the cross-complaint is lifted. The trial of the consolidated matter will remain on March 29, 2027. The mandatory settlement conference will remain on February 26, 2027. Olen shall give notice of this ruling.
54.	Knypstra Zermeno LLP v. Sheldon 2024-01446546	Cross-defendant Knypstra Hermes LLP's motion to compel arbitration is GRANTED. (Code Civ. Proc., § 1281.2 [authorizing motion].) The court orders the entire action stayed, pending completion of arbitration of the claims in the Cross-complaint. (Code Civ. Proc., § 1281.4.) The court sets a status conference re: binding arbitration for January 22, 2027 at 9:00 a.m. Cross-complainants' request for judicial notice (ROA 86) is GRANTED, limited to the fact that the documents were filed, but not of the truth of their contents. (Evid. Code, § 452, subd. (d) [court records]; *In re Vicks* (2013) 56 Cal.4th 274,

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		314 ["while courts are free to take judicial notice of the *existence* of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files;" emphasis in original; internal citation omitted]; *Williams v. Wraxall* (1995) 33 Cal.App.4th 120, 130, FN 7 [judicial notice of truth of matters in court records ordinarily limited to orders, statements of decision, and judgments].) Cross-defendant's request for judicial notice submitted with the Reply (ROA 94) is DENIED. (Evid. Code, § 453, subd. (a) [request for judicial notice requires "[g]iv[ing] each adverse party sufficient notice of the request, through the pleadings or otherwise, to enable such adverse party to prepare to meet the request"]; Bus. & Prof. Code, § 6204, subd. (e) [with exceptions not relevant here, "the award and determinations of the arbitrators shall not be admissible nor operate as collateral estoppel or res judicata in any action or proceeding"]; *Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 295 [court is not required to take judicial notice of irrelevant documents].) Moving cross-defendant met its burden to show a written arbitration agreement exists that covers plaintiffs' claims. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413 ["Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence"]; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164-166 [three-step process]; Knypstra Decl., ¶ 2, and Ex. A thereto [Cross-complaint alleging breach of Legal Services Agreement ("Agreement"), and Ex. A thereto, requiring arbitration at § 14].) Cross-complainants do not deny the existence of the Agreement, or that it applies to their claims in the Cross-complaint. Cross-complainants fail to show moving cross-defendant waived the right to arbitrate. (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 573 [waiver factors]; *St. Agnes Medical Center v. PacifiCare of California* (2003) 31 Cal.4th 1187, 1195 ["waivers are not to be lightly inferred and the party seeking to establish a waiver bears a heavy burden of proof"].) Cross-complainants argue waiver based on Knypstra Zermeno LLP litigating the claims in the Complaint. However, the subject Agreement is between cross-complainants and Knypstra Hermes, LLP, a different entity than plaintiff Knypstra Zermeno LLP. While cross-complainants contend that plaintiff Knypstra Zermeno LLP is

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		the successor to Knypstra Hermes, LLP, this is not supported by the evidence. (Knypstra Decl., ¶¶ 4-6 [alleged unpaid services which are the subject of the Complaint were performed by Knypstra Zermeno LLP, and are outside the scope of the subject Agreement]; *Benaroya v. Willis* (2018) 23 Cal.App.5th 462, 469 ["Numerous cases confirm the general rule that 'a party cannot be compelled to arbitrate a dispute that he or she has not agreed to resolve by arbitration;'" citations omitted].) Further, Knypstra Zermeno LLP did unsuccessfully seek voluntary arbitration of the claims in the Complaint prior to initiating this action. (*Id*., ¶ 6.) Moreover, even if the evidence showed that Knypstra Zermeno LLP is the successor to Knypstra Hermes, LLP, successor liability is not automatic, and cross-complainants have not shown successor liability applies here. (See *Ray v. Alad Corp*. (1977) 19 Cal.3d 22, 28 ["the rule ordinarily applied to the determination of whether a corporation purchasing the principal assets of another corporation assumes the other's liabilities ... states that the purchaser does not assume the seller's liabilities unless (1) there is an express or implied agreement of assumption, (2) the transaction amounts to a consolidation or merger of the two corporations, (3) the purchasing corporation is a mere continuation of the seller, or (4) the transfer of assets to the purchaser is for the fraudulent purpose of escaping liability for the seller's debts"].) Finally, the court is not persuaded that it should exercise its discretion to deny arbitration based on the possibility of conflicting rulings between the instant action and *Knypstra Zermeno, LLP v. Chang*, OCSC Case No. 30-2026-01565092. (Code Civ. Proc., § 1281.2, subd. (c).) Moving party shall give notice of this ruling.
55.	Bank of the West v. David Griffiths & Company, Inc. 2023-01303207	Plaintiff and Judgment Creditor Bank of the West's Motion for an Assignment Order and Restraining Order is GRANTED. Judgment Creditor Bank of the West seeks an assignment order for the right to payments due or to become due from any and all clients of the Judgment Debtors. Under Code of Civil Procedure section 708.510, "upon application of the judgment creditor on noticed motion, the court may order the judgment debtor to assign to the judgment creditor . . . all or part of a right to payment due or to become due, whether or not the right is conditioned on

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		future developments . . . .” (Code Civ. Proc., § 708.510, subd. (a).) The judgment debtor may claim that all or a portion of the right to payment is exempt from enforcement of a money judgment by application to the court on noticed motion filed not later than three days before the date set for the hearing on the judgment creditor's application for an assignment order. (Code Civ. Proc., § 708.550, subd. (a).) Failure of the judgment debtor to make a claim of exemption is a waiver of the exemption. (Code Civ. Proc., § 708.550, subd. (a).) On April 19, 2023, Judgment was entered in the instant matter in favor of Judgment Creditor and against Judgment Debtors, David Griffiths & Company, Inc., a California corporation doing business as Griffiths, Diehl & Company, Inc. and David Griffiths, an individual in the amount of $602,234.59. (Hoang Decl., ¶ 5, Ex. 1.) To date, no payments have been made toward satisfying the Judgment. Judgment Creditor is only able to identify one obligor (Moxxor LLC) of Judgment Debtors who appears to have made substantial payments to Judgment Debtors. Judgment Creditor argues it should not be penalized for not being able to provide a client list as Judgment Debtors have refused to provide such information. Moreover, Section 708.510 does not require the Judgment Creditor to name its obligors in a motion. (Code Civ. Proc., § 708.540.) Judgment Creditor also seeks an order enjoining the Judgment Debtors from assigning or otherwise disposing of the right to payment sought to be assigned upon. Code of Civil Procedure § 708.520 provides as follows: (a) When an application is made pursuant to Section 708.510 or thereafter, the judgment creditor may apply to the court for an order restraining the judgment debtor from assigning or otherwise disposing of the right to payment that is sought to be assigned. The application shall be made on noticed motion if the court so directs or a court rule so requires. Otherwise, it may be made ex parte. (b) The court may issue an order pursuant to this section upon a showing of need for the order. The court, in its discretion, may require the judgment creditor to provide an undertaking. A restraining order is necessary as Judgment Debtors have not paid the Judgment and have refused to provide the names

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		of their obligors. The restraining order is appropriate as a tool to prevent Judgment Debtors from engaging in any bad faith and to aid the Judgment Creditor in satisfying the Judgment. The motion is unopposed. The Judgment Creditor has made a sufficient showing, Accordingly, the motion is GRANTED. The court will execute the proposed order submitted in support of the motion. Judgment Creditor shall give notice of this ruling.
56.	Dirr v. Quizhpi 2024-01432550	Defendants Nelson Quizhpi and LQ Capital Trust, Inc.'s motion for change of venue is GRANTED. Defendants have shown venue is improper in Orange County. (See Code Civ. Proc. § 395 [venue proper "where the defendants or some of them reside."] No defendant resides in Orange County. Defendant LQ Capital Trust, Inc. is a resident of Los Angeles County. This matter is ORDERED transferred to Los Angeles County Superior Court. Specifically, this case is transferred to the Los Angeles County Superior Court located at 9355 Burton Way, Beverly Hills, CA 90210. Plaintiff is ordered to pay all fees necessary to effectuate the transfer, which include, but are not necessarily limited to, (1) the transfer fee of $50, which must be paid via a check made payable to the clerk of the court, and (2) the first appearance fee for the new court, which must be paid via a separate check made payable to the clerk of the court. Plaintiff is ordered to submit both checks to the clerk of the Orange County Superior Court within 30 days of this ruling (and the first appearance check will be forwarded to the new court along with other materials). Plaintiff is further ordered to take all other steps necessary to effectuate the transfer. If plaintiff fails to pay the fees within 30 days, the case will be dismissed, without prejudice. The court sets a status conference regarding the transfer of this action for September 18, 2026 at 9:00 a.m. in Department C28. Defendants shall give notice of this ruling.

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57.	Murray v. Priority Plus Financial LLC 2025-01453046	Plaintiffs Mayah Murray, Daniel Almance, Tanya Barbosa, Mariel Bolton, Anthony Durbin, Patrick Kaltenbach, Jonathan Ramlow, Brennan Ramos, Phil Ramos, Sylvain Reyes, Zachary Williams, Cathleen Camunas, Steven Crawford, Tara Erickson, Nathaniel Grande, Erik Margerum, Brandon Mendizabal, Nicole Portwood, Derek Price, Michael Priest, Rick Riggin, Michelle Schulman, Allison Taylor, Chantel Boses, Jess Daly, Ryan Maniaci, and Kori Prather's (collectively, plaintiffs) motion to enforce settlement is GRANTED, as follows. (See Code Civ. Proc., § 664.6.) The court ORDERS the entry of judgment pursuant to the terms of the subject settlement agreement in the total amount of $663,020.35 in favor of plaintiffs, and jointly and severally against defendants Priority Plus Financial LLC, Brandon Avila, Todd Avila, individually and as Trustee of Cashcow Holdings Trust, Christopher Schlegel, and Horned Frogs LLC (collectively, defendants). (See Janzen Decl. at Ex. A [subject settlement agreement].) The settlement agreement requires defendants to pay a total settlement sum of $3.1 million to plaintiffs over four payments as specified in the agreement, and it is undisputed that $663,020.35 of this sum remains unpaid and due. (Janzen Decl. at Ex. A [settlement § 1.2(1)]; see *id*. ¶¶ 6, 10, 22 [first, second, and fourth payments have been made]; see also Williams Decl. ¶ 10, Ex. B [attempting to negotiate extension of deadline for third payment]; Opp. at pp. 2:3-4, 2:13-16, 5:11-6:11 [only $20,697.65 of the third payment of $683,718 has been made]; see also Reply at p. 2:3-5 [acknowledging defendants' payment of $20,697.65].) A party moving for the entry of judgment pursuant to a settlement under Code of Civil Procedure section 664.6 need not establish a breach of contract to support relief under the statute; the court may enter judgment pursuant to the settlement agreement regardless of whether a party has breached its terms or not. (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1184-1185; see *Machado v. Myers* (2019) 39 Cal.App.5th 779, 796 [whether a party is in breach is "not relevant to the entry of judgment pursuant to section 664.6"].) Plaintiffs' request for prejudgment interest pursuant to Civil Code section 3289 is DENIED. "Prejudgment interest is not a cost, but an element of damages." (*BTHHM Berkeley, LLC v. Johnston* (2024) 100 Cal.App.5th 1220, 1225; *North Oakland Medical Clinic v. Rogers* (1998) 65 Cal.App.4th 824, 830 ["It is well established that prejudgment interest is not a cost, but

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		an element of damages."].) Here, the parties have settled this consolidated action for $3.1 million (plus attorney fees as costs to the prevailing party on a motion to enforce the settlement). A judgment entered pursuant to section 664.6 is a judgment on plaintiffs' claims in this action pursuant to terms of the settlement; it is not a judgment for breach of the settlement agreement and does not require a finding that a breach even occurred. Thus, without a provision in the settlement agreement providing for such prejudgment interest/damages, no such interest in warranted. (See *Greentree Financial Group, Inc. v. Execute Sports, Inc.* (2008) 163 Cal.App.4th 495, 502 [reversing award of prejudgment interest not provided for in section 664.6 agreement]; see also *BTHHM Berkeley, supra,* at pp. 1225-1226.) Attorney fees in the total amount of $10,977.50 are GRANTED in favor of plaintiffs and against defendants, pursuant to sections 6.0 and 13.0 of the settlement agreement. (See Janzen Decl. at Ex. A [settlement §§ 6.0, 13.0, fee provisions].) The court has awarded all the hours requested, but the hourly rates claimed by plaintiffs' counsel and his staff are not reasonable. Specifically, plaintiffs have requested hourly rates of $150 for an unidentified "law clerk" with unknown experience, $225 for paralegal Jessica Bacho with unknown experience, and $1,000 for attorneys Sean Janzen, Christopher Engels, and Sarah O'Brien. (Janzen Decl. ¶¶ 33-39, Ex. J.) These rates are unreasonably high and have been reduced by half to reflect the reasonable rates for attorneys/staff of their experience, expertise, and skill shown. (See *Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41 [" 'the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases' "].) The OSC re: preliminary injunction is ORDERED discharged. Plaintiffs shall give notice of all of the above.
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